

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**CONSERVATORSHIP CALENDAR NOTES
September 21, 2026, 10:00 AM, Department 2
101 Maple Street, Auburn**

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These calendar notes are provided pursuant to Local Rule 80.1.4 for the conservatorship calendar set for hearing **September 21, 2026, 10:00 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are **not** a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0011643 In Re the Conservatorship of Brosnan, Dylan Joseph

Appearance is required for continued status hearing.
Current status is needed.

2. S-PR-0013371 In Re the Conservatorship of Williams, Sherri Swift

Petition for attorney fees is recommended for approval as prayed.

3. S-PR-0013723 In Re the Conservatorship of Diestler, Brian Michael

Appearance is required for continued hearing on petition for substituted judgment.

Missing notice of hearing. Missing service of notice of hearing to conservatee, all second-degree relatives of conservatee, and counsel for conservatee. Prob.C. §§ 2581 & 1214.

Missing needed allegations as to whether conservatee opposes the petition. Prob.C. § 2582(a).

Clarification is needed: the proposed trust has already been executed. The court has not granted any substituted judgment order authorization the creation of a trust. The court previously found the prior trust to be void.

Clarification is needed. the trust identifies settlors as Dennis Diestler and Deborah Dieslter, the parents of conservatee, and that the trust will be a 3d-party special needs trust. As requested in the petition, the substituted judgment special needs trust will be settled, only after court order, by *conservator* Brian Diestler only. The anticipated trust will be funded entirely with *conservatee's* assets, making it a 1st-party special needs trust.

Revisions are needed: the proposed special needs trust includes numerous provisions which violate the requirements of C.R.C. 7.903 or otherwise require revision, contrary to numerous verified statements in the petition, as follows:

- § 4.05 impermissibly grants discretion to trustee to terminate the trust in derogation of C.R.C. 7.903(c)(3);
- § 5.07(b) permits "any kind of property or type of investment" without regard to the limitations of Prob.C. § 2574 or the limited request for expanded investment powers requested in the petition at ¶ 18, in derogation of C.R.C. 7.903(c)(4); § 5.07(d) also appears to permit investments not allowed under Prob.C. § 2574;
- § 5.05 impermissibly waives bond in derogation of C.R.C. 7.903(c)(5);
- § 5.14 insufficiently specifies the "persons" to whom a trust account is required, and the manner in which it is to be rendered; further, the account frequency required by Prob.C. § 2620 et seq. is not annual, as indicated; see C.R.C. 7.903(c)(6); revision is needed;
- § 5.06 impermissibly allows trustee fees without court approval, and does not require court approval of attorney fees, in derogation of C.R.C. 7.903(c)(8).

Conservator response is needed: conservator should be prepared to show good cause for the power requested in proposed trust § 5.07(m) to hold estate property in trustee's individual name or in the name of nominees without disclosing the existence of the trust.

Other matter

On the court's own motion, conservator shall appear and shall request an increase in bond. Conservator's inventory and appraisal clearly shows that bond is inadequate, and conservator was immediately required to request a bond increase. C.R.C. 7.204(a). Based on the inventory and appraisal values and assuming no income, bond of at least \$993,186.23 is required under C.R.C. 7.207 and should be ordered. With income added, the needed bond amount will increase. To the extent a substituted judgment trust is created and funded with all conservatorship property, the same bond calculation will apply to trustee. See C.R.C. 7.903(c)(5).

4. S-PR-0013911 In Re the Conservatorship of Northern, Barry Wayne

No appearance is required for post-appointment conservatorship review hearing.
All needed post-appointment filings appear to have been filed and served as required. Court investigator will complete an annual review in 2027 according to standard court practices.

5. S-PR-0013965 In Re the Conservatorship of Brekken, Laila Grace

Appearance is required for post-appointment conservatorship review hearing.
Missing filing and service of Notice of Conservatee's Rights (GC-341).
Missing filing and service of Confidential Conservatee Care Plan—Part 1 (GC-355) and, if applicable, Part 2 (GC-356).

6. S-PR-0013999 In Re the Conservatorship of Kaldani, Janet S

No appearance is required for post-appointment conservatorship review hearing.
All needed post-appointment filings appear to have been filed and served as required. Court investigator will complete an annual review in 2027 according to standard court practices.

7. S-PR-0014037 In Re the Conservatorship of Burt, Kyle Scott

No appearance is required for post-appointment conservatorship review hearing.
All needed post-appointment filings appear to have been filed and served as

required. Court investigator will complete an annual review in 2027 according to standard court practices.

8. S-PR-0014038 In Re the Conservatorship of Sims, Kiera Beverly

No appearance is required for post-appointment conservatorship review hearing.

All needed post-appointment filings appear to have been filed and served as required. Court investigator will complete an annual review in 2027 according to standard court practices.

9. S-PR-0014060 In Re the Conservatorship of Beesley, Lisa Ann

Appearance is required for hearing on 2d amended petition for appointment of limited conservator of the person.

Missing citation for amended petition. Amended petition requires entirely new service. C.R.C. 7.53. Missing 15 days' personal service of citation with copy of amended petition to respondent. Service of the amended petition alone is insufficient.

Missing notice of hearing for amended petition. Amended petition requires entirely new service. C.R.C. 7.53. Missing 15 days' service of notice of hearing with copy of amended petition to all 2d-degree relatives of respondent. Service of the amended petition alone is insufficient.

Missing attorney signature on 2d amended petition. C.C.P. § 128.7(a). Missing verification of 2d amended petition by petitioner. Prob.C. § 1021.

10. S-PR-0014073 In Re the Conservatorship of Maciel, Heidi A.

No appearance is required for post-appointment conservatorship review hearing.

All needed post-appointment filings appear to have been filed and served as required. Court investigator will complete an annual review in 2027 according to standard court practices.

11. S-PR-0014223 In Re the Conservatorship of Valdehuesa, Philip Matthew

Appearance is required for continued hearing on petition for appointment of joint limited conservators of the person.

12. S-PR-0014226 In Re the matter of Martin, Kenneth Earl

Appearance is required for hearing on motion to compel compliance with deposition subpoena.

Movant should be prepared to address whether the court may grant the requested relief against the Veterans Administration.

Objectors should be prepared to address to what extent their status as agent and named successor agent under an AHCD authorizes their participation in this motion, either on for themselves or for Kenneth Martin (see, for example, Prob.C. § 4678). Objectors should be prepared to address the effect of the failure of Kenneth Martin and objectors to serve objections to the subpoena when served by movant with the notice to consumer.

Because this matter is scheduled on the conservatorship calendar, no tentative ruling is provided by the court. Local Rule 80.1.4.

13. S-PR-0014276 In Re the Conservatorship of Ramos, Sofia Marie

Appearance is required for continued hearing on amended petition for appointment of joint conservators of the person.

Missing 15 days' personal service of citation with copy of amended petition to proposed conservatee. Citation filed July 28 was not untimely served (15 days' personal service is required).

Missing medical capacity declaration.

Missing response of court-appointed counsel.